

during which the House is sitting, and, if either of those Houses before the expiration of those twenty-one days presents an address to His Majesty against the order, or any part thereof, no further proceedings shall be taken thereon without prejudice to the making of any new order; and

- (b) subsection (3) of section twenty-nine of the Ministry of Transport Act, 1919, shall not apply. 9 & 10 Geo. 5.
c. 50.

2.—(1) This Act may be cited as the Railways (Authorisation of Works) Act, 1923. Short title
and dura-
tion.

(2) This Act shall continue in force for two years and no longer unless Parliament otherwise provides; but the expiration of this Act shall not affect the validity of any order for which application has been previously made thereunder.

CHAPTER 31.

An Act to empower the Secretary of State in Council of India to raise money in Great Britain for the Service of the Government of India.

[31st July 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. This Act may be cited as the East India Loans Act, 1923. Short title.

2. In this Act the expression "Secretary of State" means the Secretary of State in Council of India, unless the context otherwise requires. Definition.

3. It shall be lawful for the Secretary of State at any time or times to raise in Great Britain, as and when necessary, by the creation and issue of capital stock, bonds, debentures, or bills, or partly by one of such modes and partly by another or others, any sum Power to
raise fifty
million
pounds for
constructing,
extending,

and equip-
ping railways
in India
and irriga-
tion works
and for other
purposes.

or sums of money not exceeding in the whole fifty million pounds sterling, to be applied to—

- (i) the construction, extension, equipment and improvement of railways in India by State agency, or through the agency of a company or companies under engagement with the Secretary of State ;
- (ii) the repayment of the principal of any bonds, debentures, or debenture stock issued by any such company under the guarantee of the Secretary of State ;
- (iii) the discharge of any obligations incurred or arising by reason of the purchase by the Secretary of State of any railway constructed or worked in India by any such company, or on the determination of the contract of any such company with the Secretary of State ;
- (iv) the construction, extension, equipment, and improvement of irrigation works in India.

Power to raise
fifteen million
pounds for the
general pur-
poses of the
Government of
India.

4. It shall also be lawful for the Secretary of State at any time or times to raise in Great Britain, as and when necessary, in the manner mentioned in section three of this Act, any sum or sums of money not exceeding in the whole fifteen million pounds sterling for the general purposes of the Government of India.

Issue of
bonds.

5. All bonds to be issued by the Secretary of State under the authority of this Act shall bear the names of two members of the Council of India, and, by way of counter-signature, the name of the Secretary of State for India, or one of his Under-Secretaries, or his deputy or assistant Under-Secretary, and shall be for such respective amounts, payable after such notice, and at such rate or rates of interest, as the said Secretary of State may think fit, and the names may be impressed or affixed by machinery or otherwise in such manner as the Secretary of State may from time to time direct.

Power to
redeem
securities at
a premium,
&c.

6. The power given to the Secretary of State by this Act to raise money by means of stock or other securities shall be deemed to include the power to provide for redemption of stock or securities at a premium, and the power to arrange for giving an option (subject to such conditions and on such terms as he may determine, and

with or without payment of any further consideration) to holders of stock or securities to take new stock or securities in lieu thereof and to create stock or securities for the purpose, and any stock or securities surrendered for the purpose of exchange shall be cancelled.

Any stock or securities created for the purpose of an exchange under this section shall not be taken into account in calculating the nominal amount of securities authorised to be issued under this Act.

7. In case of the creation and issue of capital stock there shall be kept, either at the office of the Secretary of State in London, or at the Bank of England, books wherein entries may be made of the said capital stock, and wherein assignments or transfers of the same, or any part thereof may be entered and registered, and may be signed by the parties making such assignments or transfers, or, if such parties be absent, by his, her, or their attorney or attorneys thereunto lawfully authorised by writing under his, her, or their hands and seals, to be attested by two or more credible witnesses; and in each case the person or persons to whom such transfer or transfers shall be made may respectively underwrite his, her, or their acceptance thereof; and no stamp duties whatsoever shall be charged on the said transfers or any of them.

Transfer
books of
capital
stock.

Nothing in this section shall affect the provisions of section six of the Government of India (Amendment) Act, 1916, with respect to the transfer of India Stock by deed.

6 & 7 Geo. 5.
c. 37.

8. Subject to the provisions of this Act, the nominal amount of the stock, bonds, debentures or bills issued under this Act shall not exceed the sum of money authorised to be raised by this Act.

Nominal
amount of
securities to
be issued.

9. Sections five to eleven inclusive, sections fourteen to sixteen inclusive, and section nineteen of the East India Loan Act, 1893, and section five of the East India Loans Act, 1908, shall be incorporated with this Act:

Application
of enact-
ments.
56 & 57 Vict.
c. 70.
8 Edw. 7.
c. 54.

Provided that—

- (a) the said sections seven and eleven as so incorporated shall have effect as though the words “at par” were omitted;
- (b) for the purposes of the said section fourteen as so incorporated, the purchase of securities

in the market and their subsequent cancellation shall be deemed to be repayment of principal moneys equal to the nominal amount of the securities purchased.

Saving.

10. This Act shall not prejudice or affect any power of raising or borrowing money, or of creating or issuing securities, vested in the Secretary of State at the time of the passing thereof.

Provision
as to Mem-
bers of the
House of
Commons.
22 Geo. 3.
c. 45.
41 Geo. 3.
c. 52.

11. None of the provisions of the House of Commons (Disqualifications) Act, 1782, or the House of Commons (Disqualifications) Act, 1801, shall be construed so as to extend to any subscription or contribution to any loan raised under this Act.

CHAPTER 32.

An Act to amend and prolong the duration of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920, and any enactment amending that Act, and to make provision as to the rent and recovery of possession of premises in certain cases after the expiry of that Act, and for purposes in connection therewith.

[31st July 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

AMENDMENT AND PROLONGATION OF DURATION OF PRINCIPAL ACT.

Prolongation
of duration
of principal
Act.
10&11Geo.5.
c. 17.

1. Subject to the provisions of this Act, the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920 (hereinafter referred to as the principal Act), shall continue in force until the twenty-fourth day of June, nineteen hundred and twenty-five.